

"Civility allows for zealous representation, reduces clients' costs, better advances clients' interests, reduces stress, increases professional satisfaction, and promotes effective conflict resolution. These guidelines foster the civility and professionalism that are hallmarks of the best traditions of the legal profession."

OCBA Civility Guidelines

TENTATIVE RULINGS
Judge Kimberly Knill, Dept. C17

- **The court encourages remote appearances to save time, reduce costs, and increase public safety.** Go to www.occourts.org/media-relations/civil.html and click on the yellow box that says, "CLICK HERE TO APPEAR/CHECK IN FOR CIVIL SMALL CLAIMS/LIMITED/UNLIMITED/COMPLEX REMOTE PROCEEDINGS."
- All hearings are open to the public.
- If you desire a transcript of the proceedings, you **must** provide your own court reporter (unless you have a fee waiver and request a court reporter in advance).
- Call the other side. If **everyone** submits to the tentative ruling, call the clerk at 657-622-5217. Otherwise, the court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

HEARING DATE: Friday, 09/15/2023 10:00 AM

#	Case Name	Tentative
3	Howe vs Adoption Pro, Inc. 30-2020-01157334-CU-BC-CJC	Motion to be Relieved as Counsel of Record for Plaintiff Jeff Howe The motion of attorney Carlos C. Ignacio (Chung & Ignacio, LLP) to withdraw as attorney of record for Plaintiff Jeff Howe is GRANTED. (Code Civ. Proc., § 284, Cal. Rules of Court, rule 3.1362.) Moving attorney is to give notice. The withdrawal will become effective upon filing of a proof of service. Motion to be Relieved as Counsel of Record for Plaintiff Tasha Howe The motion of attorney Carlos C. Ignacio (Chung & Ignacio, LLP) to withdraw as attorney of record for Plaintiff Tasha Howe is GRANTED. (Code Civ. Proc., § 284, Cal. Rules of Court, rule 3.1362.)

		Moving attorney is to give notice. The withdrawal will become effective upon filing of a proof of service.
6	Mobilemoney, Inc. vs Cedar Fair, L.P. 30-2022-01281489-CU-BC-CJC	Defendant Cedar Fair, L.P.'s Motion to Compel Further Responses to Requests for Admission, Set One Defendant Cedar Fair, L.P.'s Motion to Compel Further Responses to Form Interrogatories - General, Set One Both motions are CONTINUED to 10/20/2023 at 10:00 AM. <i>All parties and/or counsel are ORDERED to appear in person; no Zoom appearances will be allowed.</i> The parties/counsel have not engaged in sufficient attempts to meet and confer. (See Code Civ. Proc., § 2016.040; <i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1293 [Discovery Act requires moving party to declare he or she has made a serious attempt to obtain an informal resolution of each issue; rule designed to encourage parties to work out their differences informally to avoid necessity for formal order, which lessens burden on court and reduces unnecessary expenditure of resources by litigants]; <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 402 [central precept of Discovery Act that discovery be self-executing; discovery intended to operate with a minimum of judicial intervention].) The parties/counsel are ORDERED to engage in additional attempts to meet and confer <i>in person, telephonically, or over remote videoconferences (not email)</i> no later than sixteen court days before the new hearing date. The majority of the objections contend the terms in the discovery requests are vague and ambiguous. During a meet and confer, the parties are expected to agree to definitions of terms and include the agreed upon definitions in further responses. The parties/counsel are ORDERED to file a JOINT STATUS REPORT indicating whether court intervention remains the only option to resolve this discovery dispute, and if so, why, no later than nine court days before the new hearing date. Failure to comply with this order may result in sanctions against the non-compliant party and/or their counsel pursuant to Code of Civil Procedure section 177.5.

		The parties/counsel are strongly encouraged to familiarize themselves with Department C17's General Policies and Procedures listed on the court's website. Defendant to give notice.
7	Pham vs Grove Investing CO. 30-2020-01174718-CU-WE-CJC	Defendants Grove Investment Co. And Philip Chapirson's Motion for an Order to Compel Plaintiff Julia Pham to Respond to Defendants' Special Interrogatories, Set One and Request for Sanctions Defendants' unopposed Motion to Compel Plaintiff Julia Pham to Respond to Defendant's Special Interrogatories, Set One and Request for Sanctions is GRANTED. Plaintiff failed to respond to Special Interrogatories, Set One, served 3/14/2023. (Krouse Dec.) Plaintiff has not opposed the motion or provided any reason for not responding. Plaintiff is ORDERED to serve responses, without objection, to the above discovery, and to pay sanctions to defendants' counsel in the sum of \$1,245.00, within 20 days. Defendants to give notice. Defendants Grove Investment Co. And Philip Chapirson's Motion to Compel Further Responses to Defendants' Requests for Admission, Set One Propounded to Plaintiff Julia Pham and Request for Sanctions The Motion of Defendants Grove Investment Co. and Philip Chapirson to Compel Further Responses to Request for Admissions, Set One is CONTINUED to 10/20/2023 at 10:00 AM. <i>All parties and/or counsel are ORDERED to appear in person; no Zoom appearances will be allowed.</i> The parties/counsel have not engaged in sufficient attempts to meet and confer. (See Code Civ. Proc., § 2016.040; <i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1293 [Discovery Act requires moving party to declare he or she has made a serious attempt to obtain an informal resolution of each issue; rule designed to encourage parties to work out their differences informally to avoid necessity for formal order, which lessens burden on court and reduces unnecessary expenditure of resources by litigants]; <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 402 [central precept of Discovery Act that discovery be self-executing;

		discovery intended to operate with a minimum of judicial intervention].) The parties/counsel are ORDERED to engage in additional attempts to meet and confer <i>in person, telephonically, or over remote videoconferences (not email)</i> no later than 16 court days before the new hearing date. The parties/counsel are ORDERED to file a JOINT STATUS REPORT indicating whether court intervention remains the only option to resolve this discovery dispute, and if so, why, no later than 9 court days before the new hearing date. Failure to comply with this order may result in sanctions against the non-compliant party and/or their counsel pursuant to Code of Civil Procedure section 177.5. The parties/counsel are strongly encouraged to familiarize themselves with Department C17's General Policies and Procedures listed on the court's website. Defendants to give notice.
8	Balboa Capital Corporation vs Architectural Mill Work and Stairs 30-2022-01287158-CU-CL-CJC	Plaintiff's Motion to Compel Responses of Defendant Daniel Joel Videen to Form Interrogatories, Set No. One, Special Interrogatories, Set No. One, and Inspection Demands, Set No. One, and for Monetary Sanctions in the Sum of \$1,192.50 Plaintiff Balboa Capital Corporation's unopposed Motion to Compel Responses of Defendant Daniel Joel Videen to the following discovery is GRANTED: 1. Form Interrogatories, Set One; 2. Special Interrogatories, Set One; 3. Request for Production of Documents, Set One. Defendant Videen failed to respond to Plaintiff Balboa's Form Interrogatories, Set One, Special Interrogatories, Set One and Request for Production of Documents, Set One, which were served on 1/30/2023. (Raichelson Decl., ¶ 2, Exs. 1-3.) Defendant has not opposed the motion or provided any reason for not responding to the discovery at issue. Defendant Videen is ORDERED to serve responses, without objection, to the above discovery, and to pay sanctions to plaintiff's counsel in the sum of \$787.50, within 20 days. Plaintiff to give notice.

		Plaintiff's Motion for Order Establishing Admissions Propounded on Defendant Daniel Joel Videen and for Monetary Sanctions in the Sum of \$1,072.50 Plaintiff Balboa Capital Corporation's unopposed Motion to Deem Requests for Admissions, Set One Admitted against Defendant Daniel Joel Videen is GRANTED. Defendant Videen failed to respond to Plaintiff Balboa Capital's Request for Admissions, Set One which were served on 1/30/2023. (Raichelson Decl., ¶ 2, Ex. A.) Defendant has not opposed the motion or provided any reason for not responding to the discovery. Accordingly, Plaintiff's Requests for Admissions, Set One propounded to Defendant Videen are deemed admitted. Defendant Videen is ORDERED to pay sanctions to plaintiff's counsel in the sum of \$1,072.50 within 20 days. Plaintiff to give notice.
9	Sparkle and Co., LLC vs Club Motorcars, LLC 30-2021-01234386-CU-BC-CJC	Defendants' Demurrer to Complaint The parties' belated stipulation to continue the hearing is rejected. The unopposed Demurrer of Defendants Kamiz Bahkshiyar, Paul Christopher Vanides, and Club Motorcars, LLC, is SUSTAINED with 10 days leave to amend. Plaintiff is ordered to file a red-lined version and clean version of the First Amended Complaint. Defendants to give notice. Defendants' Motion to Strike Portions of Plaintiffs' Complaint The parties' belated stipulation to continue the hearing is rejected. The unopposed Motion to Strike of Defendants Kamiz Bahkshiyar, Paul Christopher Vanides, and Club Motorcars, LLC, is DENIED as MOOT. Defendants to give notice.

10	Sun vs BNSF Railway Company 30-2020- 01170148-CU-PO- CJC	Defendant City of Anaheim's Motion for Summary Judgment Defendant, City of Anaheim's Motion for Summary Judgment is DENIED. Defendant failed to meet its initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) The City failed to meet its initial burden to show it did not own/control the subject fence. The City's separate statement is devoid of any facts of ownership. Further, the City's separate statement is devoid of any facts about the so-called "crosswalk to nowhere." On this record, even if the City's legal argument is correct, there are inadequate facts upon which to base a ruling as a matter of law. Plaintiffs to give notice.
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